

PUBLIC SUBMISSION

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Request for Information: Development of an Artificial Intelligence Action Plan

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Comment on FR Doc # 2025-02305

Submitter Information

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[REDACTED]

General Comment

I have submitted my comment as an attachment in order to preserve formatting and enhance readability. I hope that's OK.

Attachments

Comment

To whom it may concern,

AI needs creators (writers, artists, filmmakers, musicians, designers, academics, etc.). If AI is only as good as the data it's trained on, then harming those who create that data by disregarding their IP rights will retard AI development. To this end, protecting human creators must be part of this plan. Copyrights must be respected and protected.

Despite recent statements from OpenAI and Google, there are real doubts about whether upending copyright laws to benefit tech companies would even result in more advanced AI. There's a growing consensus that scale alone will not lead to significantly more advanced or capable models.[2][3]

The Chinese-developed Deepseek-R1 only used a fraction of the training data and compute and managed to match or exceed the capabilities of both ChatGPT and Gemini, proving that advances are likely to come not from scaling but from efficiency, optimization, new architectures, and innovation.

Technology companies themselves protect their own IP rights fervently. Google is worth around two trillion dollars. The idea that they can't pay for training data – that they must have it all, and for free – is hard to believe.

The creative sector in the United States was responsible for over a trillion dollars in 2022, or 4.3% of America's GDP.[1] Undermining one industry to benefit another is short-sighted; it's robbing Peter to pay Paul. We need a balanced strategy, one that supports both industries.

If you are inclined to side with tech companies and their "fair use" argument to train AI models on copyrighted materials, I'd ask you to also consider the following proposals:

1. **Transparency.** AI developers should be required to maintain a searchable list of all the data they used to train a model.
2. **Opting-Out of Training Sets.** An IP holder should have the right to request that the developer remove their work from the training set of pre-existing and future models. If something is posted online that clearly states it is not to be used for training, that request must be honored. This includes websites who don't wish to be scraped for data. Perhaps something like a no-call list could be established to make it easier for creators to opt-out of AI training.
3. **User Consent on Online Platforms.** Online platforms like YouTube, Facebook, X, Pinterest, Instagram, and ArtStation, and SoundCloud, should not be allowed to bundle and sell user-created content to AI developers without each user's individual and explicit permission.

4. **Added Tax for High-Revenue AI Developers.** AI developers whose revenue exceeds a certain threshold should pay an added tax to fund programs that support human creators.
5. **Automated Licensing System.** Establish a government research grant, funded by AI companies, to develop automated licensing solutions. If an AI model references a copyrighted work in a generated output, the copyright holders should receive royalties for it.
6. **Required Labeling of AI-Generated Content.** All images, text, and audio should be marked by the developer or publisher with a tamper-resistant identifier – and its removal should be punishable by a fine or removal of the offending content. People should know if what they're looking at or hearing is real. This might also add incentives for companies and publishers to use human artists and creators rather than AI.
7. **Training Data Must be Gathered From Legitimate Sources.** Scraping shadow libraries for training data should not be allowed.
8. **Increased Penalties For Copyright Infringement by Generative AI Products.** If a developer makes a model that, intentionally or unintentionally, reproduces a trademarked property, or generates obviously copyrighted images, text, music, or portions thereof – the end user and the developer should be held responsible for that infringement.
9. **Increased Penalties For Deepfakes.** If a developer makes a model capable of generating a facsimile of someone's appearance or voice without their permission, then both the user and developer should be liable for any damages caused by the recreation.
10. **Copyright Limitation.** Update the Copyright Act of 1976 to add a provision that only human-created content can be copyrighted.

Thank you.

Footnotes

[1] Arts.gov press release on the creative sector's contribution to the U.S. economy:
https://www.arts.gov/news/press-releases/2024/arts-cultural-sector-hit-all-time-high-2022-value-added-us-economy?utm_source=chatgpt.com

[2] ArXiv paper, *Scaling Laws Do Not Scale*:
<https://arxiv.org/pdf/2307.03201>

[3] TechCrunch article on AI scaling laws and diminishing returns:
https://techcrunch.com/2024/11/20/ai-scaling-laws-are-showing-diminishing-returns-forcing-ai-labs-to-change-course/?utm_source=chatgpt.com

